00 · COVERING BRIEF

Legal review brief

ECCS's legal documents, in-app consents and personal-data inventory, for review before any real restaurant agrees to them.

From	The founder, ECCS (Eosfera Commercial Cleaning Services), Hyderabad
Date	23 October 2026
Enclosed	13 documents, each a separate PDF (listed in section 3)

[In yellow] blanks to fill in before launch · [to confirm] choices the drafter marked for confirmation

What we ask of you

1. Review and correct the five customer documents (02 to 06).
2. Review the consents and notices the app shows (07 to 12), above all the face-attendance consent (08).
3. Advise on the questions in section 4, and on which of the 72 choices marked [to confirm] to keep (explained in 13).
4. Tell us what must change in the app itself, not only in the words.

1. ECCS and the app

- **ECCS** (Eosfera Commercial Cleaning Services), Hyderabad: commercial kitchen cleaning, pest control, hygiene and compliance for restaurants. The company is not registered yet; the documents call it [Registered company name].
- **A phone app for restaurants** (Owner, Manager, Head Chef) and ECCS's field staff: daily hygiene checklists with photos, booking ECCS's services, visit reports and certificates, licence reminders, invoices, staff attendance (optionally by face) and a salary record book, food labels, and an AI helper, ECCS Buddy. **A web console** for ECCS's office. **A public customer page** per restaurant, from a QR code.
- **Where data is kept:** Amazon Web Services in Mumbai, since 20 October 2026. Some AI processing by Anthropic in the USA.
- **Status:** in testing, with sample data. No real SMS login codes and no online payments yet.

2. How the documents were made

- Drafted on 14 October 2026 with an AI assistant (Claude), from public sources on Indian law listed in document 13. **No lawyer has reviewed them.**
- They are shown in English only, while the app works in English and 11 Indian languages. The in-app consents (07 to 11) are in all 12; the 11 translations were written by the AI assistant and no native speaker has checked them.
- Features added after 14 October are not reflected in them (section 5).

3. What is in this pack

No.	Document	Who agrees or sees it	How
00	This brief	You	—
01	Data we ask for and data we give	The data inventory you asked for	What we collect, from whom, why, for how long; and whom we give it to
02	Terms of Service	Owner (for the restaurant), Manager, Head Chef	Tick box at first login
03	Privacy Policy	Owner, Manager, Head Chef	Its own tick box at first login
04	Refund and Cancellation Policy	Owner, for the restaurant	With the Terms box
05	Data Processing Terms	Owner, for the restaurant	With the Terms box
06	Disclaimer	Everyone: part of the Terms	No separate tick
07	Agreement screen at first login	Owner, Manager, Head Chef	The click-to-agree screen for 02 to 06
08	Face attendance consent	Each employee whose face is added	Their own tap: I agree or I do not agree
09	Permission requests	Anyone using those features	The app's question, then the phone's box
10	AI notices	Users of the AI features	Labels on screen
11	Customer page notices	The public; the Owner turns it on	Owner's switch with a confirmation
12	ECCS employees	New ECCS employees	Notice; click to accept letter and handbook
13	Drafter's notes	Background for you	Blanks, the 72 choices, sources

4. Questions for you, most important first

1. **Face attendance (08).** Is ECCS only the restaurant's Data Processor, when ECCS designed the feature and wrote the notice? Is an employee's consent free when the employer asks, or should the restaurant rely on employment as a "legitimate use" (DPDP Act section 7(i)) with consent as a safeguard? Is a tap "consent in writing" for biometric data (SPDI Rule 5)? The notice says only "tell the Owner" to withdraw.
2. **AI outside India (10).** Documents, support messages, checklist photos (which can show staff, faces included), the restaurant's own content, inspection notes, prospects' shop-board photos and Buddy chats go to Anthropic in the USA. None of this is in the Privacy Policy or the Data Processing Terms yet. What must they say?
3. **Who is bound.** The company does not exist yet. The Owner agrees for the restaurant; Managers and Head Chefs, who are the restaurant's employees, agree to the Terms in their own name. Is that right? Can restaurants agree before the company is formed (Terms section 27)?
4. **Liability (Terms 22, 23).** A cap of 12 months' fees. Restaurants may count as "consumers" (Harsolia Motors, 2023), and kitchen cleaning risks property damage and injury. Is the cap sound, and what insurance should ECCS hold?
5. **Disputes (Terms 29).** Arbitration by a jointly appointed arbitrator, IAMC Hyderabad as the fallback, fast track under ₹10 lakh. For claims of a few thousand rupees, should either side be able to go to court instead?
6. **ECCS staff seeing restaurants' checklist photos.** Since 20 October, ECCS's Super Admin and Ops Manager can open a restaurant's doubtful checklist photos to accept or reject them. The Privacy Policy says ECCS cannot. Does this make ECCS a fiduciary for that purpose?

7. **Prospects.** ECCS's sales staff record businesses before any agreement: contact names and phones, location, a shop-board photo read by AI, notes, and when a quote's link was opened. The Privacy Policy does not cover prospects.
8. **ECCS's own employees (12).** Only a short notice on the joining page; the appointment letter and handbook were written by the AI assistant; Supervisors' location is recorded at visit check-ins; the bank account and PAN are not separately encrypted.
9. **Retention.** The drafts promise deletion schedules that are mostly not built yet (data inventory, section 5). Please settle a schedule; we will build to it.
10. **The customer page (11).** It publishes ECCS's grade of a named restaurant: defamation risk, and confusion with FSSAI's Hygiene Rating. Should the grade letters stay?
11. **Consumer Protection (E-Commerce) Rules 2020.** Do they apply to ECCS selling to restaurants? The drafts assume they do.
12. **English only.** Is it acceptable that Managers and Head Chefs, who may not read English well, agree to English documents? The screen offers help from the Owner or ECCS.

5. Where the drafts no longer match the app

The drafts say	The app now does	Needed
Service providers: hosting, SMS, push notifications, payments (Privacy 13); push "such as Firebase" may process data abroad (Privacy 10, 14)	Also Anthropic (AI, USA); Expo's push service (USA) as well as Firebase; the phone's speech recognition for Buddy's microphone	Name AI and push providers, purposes and transfers; add AI to the sub-processors (Data Processing 9)
"Our office cannot browse a restaurant's checklist photos" (Privacy 6, 9, 13)	ECCS's Super Admin and Ops Manager can open the doubtful ones and accept or reject them	Say so and why, or remove the feature
Who the policy covers (Privacy 3)	Prospects' details and shop-board photos are collected; ECCS employees have only the joining-page notice	Cover prospects; write a staff notice
What is collected (Privacy 6)	Not listed: Buddy chats (kept 30 days), messages about self-harm, Supervisors' check-in location, when a quote link was opened, the device ID in the activity log	Add them
Backups overwritten within 30 days (Privacy 15)	Deleted files' old versions are kept 90 days in the file store; daily server snapshots, the last 7 kept	Change the words or the setting
Deletion after closure, after a year, and so on (Privacy 15)	Built only for clock-in photos, face templates, Buddy chats and the activity log	Settle the schedule, then build it
Servers in India [to confirm] (Privacy 14)	True since 20 October 2026, except the AI and push services above	Confirm, with those exceptions
Withdraw face consent by telling the Owner or writing to ECCS (Privacy 7)	The in-app notice says only "tell the Owner"	Align the notice (08)

6. Good to know

- **Placeholders:** company name, CIN, GSTIN, address, contacts, website and Grievance Officer are blank until the company is registered (13, section 2).
- **Not built yet:** account deletion handling, data export at closure, breach notices, and the "terms updated" notice. The app's Profile has a "How to delete your account" link to Privacy section 18.